Gmail

Todd Litfin <tlitfin@rutan.com>

Landscaping Correspondence

Landscaping Correspondence Fri, May 30, 2025 at 3:15 PM
To: P M <phkmeng@gmail.com>
Cc: Jamie Lai <jlai@yorbalindaca.gov>, Jesse Gutierrez <jgutierrez@yorbalindaca.gov>, Marcia Brown <mbrown@yorbalindaca.gov>

Peter - We have reviewed your most recent correspondence regarding what you believe to be hazardous vegetation. As previously communicated, the landscaped slope area behind your home does not fall within a designated fuel modification zone that would require enhanced or additional maintenance. City staff continue to maintain this area on a regular basis to ensure safe conditions. Additionally, representatives from the Orange County Fire Authority (OCFA) have conducted multiple inspections of the site and confirmed that it is being properly maintained in accordance with all applicable safety standards. While we understand and share concerns related to wildfire prevention, the City remains confident that existing landscape maintenance practices effectively manage vegetation within all LMAD-maintained zones, including the area adjacent to the Chicago Avenue cul-de-sac.

Your request to waive elements of City Council Policy E-3—specifically regarding timelines, the three-for-one tree replacement ratio, and the requirement for neighbor consent—is not authorized or supported. Policy E-3 was established to promote consistency and prevent the unnecessary loss of the City's urban forest. **While the policy does allow for convenience removals under specific circumstances, these are subject to applicant cost responsibility and compliance with all policy requirements.** In this case, since your request is based on **personal preference** and not supported by risk management, **all costs associated with tree removal and replacement remain your responsibility. Furthermore, the original development approvals for your property require special landscape treatment along the slope to mitigate visual impacts.** This **condition remains in effect. City staff previously developed a phased removal** and **replacement plan** tailored to your request. This plan complies with Policy E-3 and provides a structured path toward your desired outcome. However, as you have elected not to proceed with the plan, the City will continue regular maintenance operations in accordance with LMAD standards.

Finally, as I stated during the May 6, 2025 City Council meeting, the trees in question are **not authorized for trimming or removal by you or anyone acting on your behalf. You are not permitted to encroach upon the City's maintenance easement. Any unauthorized removal or alteration of City-maintained trees will result in the City pursuing its legal remedies to the fullest extent of the law.**

The City will no longer respond to all of your repetitive correspondence unless the City determines a response is warranted.

Sincerely,

Todd O. Litfin
18575 Jamboree Road, 9th Floor | Irvine, CA 92612

ANNOTATION 1: Legal Defect: Unsworn attorney opinion asserting site safety. **Statutory Counter: Litfin is an attorney, not a licensed P.E. Under CA B&P Code § 6700 et seq., an attorney has no statutory authority or license to issue engineering safety** findings. Routine LMAD weed-whacking **does not address structural ladder fuels** over high-pressure gas mains.

ANNOTATION 2: Legal Defect: Framing hazard abatement as "personal preference" and invoking local policy. **Statutory Counter:** Serving the stamped P.E. Safety Report (Sept 15, 2025) and Notice of Intent (Oct 7, 2026) introduced certified risk management evidence under state law. State safety statutes (CA Civil Code § 3502, B&P Code § 6710.1) strictly preempt local municipal guidelines (Policy E-3) and visual development conditions.

ANNOTATION 3: Legal Defect: Mischaracterization of fee ownership as "encroachment" and false claim of self-executing authority. **Statutory Counter:** **1. No Owner Encroachment:** The site supervisor is the deeded fee-simple owner of Lot 8 (CA Civil Code § 828). An owner cannot "encroach" on their own land. An LMAD easement is a non-possessory surface right that does not divest the owner of title or statutory self-help rights. **2. Injunction Standard** (CCP § 526): **An attorney email has zero self-executing force. The City's only legal remedy to stop self-help hazard** clearance on private land is obtaining a judicial Temporary Restraining Order (TRO).

ANNOTATION 4 — THE ADMINISTRATIVE CHECKMATE: **Legal Defect**: Declared policy of intentional silence backfires to perfect administrative default. **Statutory Counter**: Litfin established that the City would remain silent unless a response was "warranted." The Oct 7, 2026 Notice of Intent explicitly conditioned that **"silence will be legally construed as an administrative admission of the hazard and a waiver of objection."** By remaining silent through Oct 14, 2026, the City exercised its choice under Litfin's policy, perfecting an administrative default & admitting the hazard as a matter of law.